

WHAT IS OUR MINHAG

It is our custom to eat the Z'roa' (*roasted* Shankbone) at the beginning of Shulhan 'Orekh.

HOW DO WE KNOW THAT THIS IS OUR MINHAG

- 1) R Abraham Hamway in his Mahzor for Pesah and Shabu'ot – Bet HaBehirah (printed 1875) wrote in Dine' Korekh, Halakhah Tet Vav: "After eating the sandwich we eat the Z'roa' like it is written in Shulhan 'Arukh Siman 476, 'A place that has the custom to eat roasted (meat) on the nights of Pesah eats it...' And in our land Aram Soba, Halab it is the custom to eat (roasted meat)"
- 2) Keter Shem Tob Heleq Gimal (printed in 1948) wrote: "The custom of the Sepharadim in the Land of Israel is to eat the roasted Z'roa' in the middle of the meal" In his footnote he adds, "since the Sepharadim in the Land of Israel eat the roasted Z'roa', from there we learn that they had the custom to eat roasted meat on Pesah"
- 3) Eress Hayyim (customs of the Land of Israel printed 1908) by R Hayyim Menasheh Sitteton (1871-1918) wrote in OH 476 "examine the Hoq Ya'aqob in Se'if Qatan Alef that even in a place that has the custom to eat roasted (meat), in any case it is prohibited to eat the roasted Z'roa' that is brought in memory of the Pesah (sacrifice), and examine what the later authorities wrote previously regarding Siman 473 Se'if 4. However our teacher Malki BaQodesh page 21 at the beginning of the first column refuted this and in his conclusion wrote that our custom is to eat it."
- 4) Derekh Eress (1990) in Seder Pesah; Vav wrote: "Z'roa': On 'Ereb Pesah the Z'roa' is boiled and also roasted and is eaten on both nights" He cites H Edmon Cohen and the Siddur Bet HaBehirah by R Abraham Hamway.

WHAT IS OUR MINHAG BASED ON

According to the straightforward ruling of HaRambam (MT Hamess UMassah Ch 8 H 11) and Maran (SA OH 476:1) eating roasted meat on Pesah night is dependant upon local custom and *only* a whole lamb that was roasted completely while it was whole is prohibited in all places. And even though Maran specifically writes (OH 473:4) that it is customary to serve roasted meat in memory of the Pesah sacrifice, he never mentions any prohibition of eating it on Pesah night. Therefore Maran does not differentiate between the Z'roa' and other roasted meat in a place that has the custom to eat roasted meat on Pesah night. **Only** a whole lamb that was completely roasted whole is prohibited in a place that has the custom to eat roasted meat on Pesah night.

WHICH POSQIM DISAGREE

The Ashkenazim have the custom to not eat roasted meat on Pesah night (Mishnah Berurah 476 1:1) and therefore they do not eat the Z'roa' on Pesah night if it was roasted. There are some Ashkenazi Posqim who require eating the meat in memory of the Qorban Pesah on Pesah night (based on their understanding of Pesachim 114B) and therefore write that it should be boiled (Bayit Hadash based on the MaHaRShaL, and the Sh'LaH)

According to the P'ri Hadash (R. Hizqiyah B David DiSilva-1659-1695) , who was an Italian born Rabbi who became the Rabbi of Jerusalem, the Talmud never intended the meat in memory of the Qorban Pesah to be eaten, and therefore he prohibits eating it (OH 473:4). Furthermore, according to the Ben Ish Hai it is customary not to eat roasted meats both on Pesah night and Pesah day. This custom was also recorded by R Yehudah 'Ayyash in his book Bet Yehudah (printed 1746) on the customs of Algeria, and by R David Pardo (1718-1790) in his book Hasde' David (printed 1776-1790), who was an Italian born Rabbi who also officiated in Jerusalem. Hakham 'Obadyah Yosef writes that it is our custom not to eat roasted meat on Pesah night (Yehave Da'at 3:27), however he allows roasted meat (including the Z'roa') on Pesah day. He also writes that even in a place where roasted meat is eaten on Pesah night, the Z'roa' should not be eaten. His sources for this include the P'ri Hadash, Hoq Ya'aqob, P'ri Megadim and HaGaon R Zalman. This is also the opinion of Kaf HaHayyim Sofer (473:61) The Kaf HaHayyim Sofer also cites the custom of Izmir to refrain from eating roasted meats on both nights of Pesah as well as on the first day (476:2)

CONCLUSION

The custom of Halab and the original custom of the Sepharadim in the Land of Israel is to eat roasted meat on Pesah night and to eat the roasted Z'roa' as part of the meal. However the Ashkenazim and many Sepharadim from other countries do not eat roasted meat on Pesah night (and some do not eat it on Pesah day either). Furthermore there are some later authorities who differentiate between roasted meat and the Z'roa' in a place that has the custom to eat roasted meat on Pesah, and therefore prohibit eating the Z'roa'. But the custom of Halab and the Sepharadim in the Land of Israel is based on the straightforward ruling of Maran and HaRambam who did not differentiate between the Z'roa' and other roasted meat, and only prohibit a whole lamb that was completely roasted whole, in all places on Pesah night. Therefore the Syrian community should not change their custom of eating the Z'roa' on Pesah night even if it was only roasted, since it is a Halakhically legitimate custom that was recorded by our Rabbis.